



POLICE DEPARTMENT

October 11, 2012

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Eloy Sanchez
Tax Registry No. 926065
Transit Bureau District 3
Disciplinary Case No. 2010-2572

The above-named member of the Department appeared before me on October 31, 2011, January 26, 2012, April 27, 2012, and June 11, 2012, charged with the following:

1. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about March 5, 2010, while assigned as Desk Officer, did fail and neglect to inspect the Prisoner Roster (PD244-145) to ensure the entries were being made on said Prisoner Roster (PD244-145). (*As amended*)

P.G. 202-14, Page 2, Paragraph 18 DESK OFFICER
DUTIES AND RESPONSIBILITIES

P.G. 210-01, Page 1, Paragraph 5 PRISONERS GENERAL PROCEDURES
GENERAL

2. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about March 5, 2010, while assigned as Desk Officer, did allow two (2) members of the New York City Police Department Explorers, who were dressed in civilian attire, behind the desk area when said members were not authorized to be behind the desk area.

P.G. 202-14, Page 3, Paragraph 41 DESK OFFICER
DUTIES AND RESPONSIBILITIES

3. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about March 5, 2010, while assigned as Desk Officer, did fail to supervise subordinate members of the command, to wit: said Sergeant did fail to ensure that Members of the Service under his supervision were promptly going to post or assignment. (*As amended*)

P.G. 202-14, Page 3, Paragraph 47 – DESK OFFICER
DUTIES AND RESPONSIBILITIES

4. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about March 8, 2010, while assigned as Patrol Supervisor, did wrongfully and without just cause fail to properly supervise a subordinate officer while performing “Container Checks” at the East 138th Street and Grand Concourse (#4) Station, to wit: while under said Sergeant’s supervision, and in said Sergeant’s presence, said subordinate officer was observed off-post, talking on his cellular phone.

P.G. 202-17, Pages 1 & 2, Paragraphs 1 & 24 PATROL SUPERVISOR
DUTIES AND RESPONSIBILITIES

5. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about March 8, 2010, while assigned as Patrol Supervisor, having observed a subordinate officer off post, talking on his cellular phone, did fail to take corrective action. (*As amended*)

P.G. 202-17, Page 1, Paragraph 18 – PATROL SUPERVISOR
DUTIES AND RESPONSIBILITIES

6. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about August 18, 2010, was discourteous to on-duty New York City Police Department Lieutenant Timothy Murphy, Tax No. 906898, to wit: after being directed by said Lieutenant to take meal at 1900 hours and then relieve the Desk Officer for meal at 2000 hours, said Sergeant did request, on two (2) occasions, to take lost time and when said requests were denied, said Sergeant did enter the office of New York City Police Department Captain Wilfredo Camargo, Tax No. 913093, and confront said Lieutenant in what was perceived to be a menacing and threatening manner.

P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT GENERAL
GENERAL REGULATIONS

7. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about August 24, 2010, was discourteous to on-duty New York City Police Department Lieutenant Timothy Murphy, Tax No. 906898, to wit: during a meeting at which the events of August 18, 2010 were to be discussed, said Sergeant did become agitated toward said Lieutenant and ask Captain Wilfredo Camargo, Tax No. 913093, in a serious and threatening manner, if he could ask said Lieutenant to step out into the parking lot to settle the matter.

P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT GENERAL
GENERAL REGULATIONS

8. Said Sergeant Eloy Sanchez, while on-duty and assigned to Transit District 12, on or about and between March 12, 2010 and August 21, 2010, did wrongfully engage in

conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Sergeant did record several conversations with several Members of the Service, without permission or necessity and without the knowledge of said Members of the Service.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT PROHIBITED
CONDUCT
GENERAL REGULATIONS

The Department was represented by Pamela Naples, Esq., Department Advocate's Office, and Respondent was represented by Anthony DiFiore, Esq.

The Department moved to Dismiss Specification No. 4. Respondent, through his counsel, entered a plea of Not Guilty to the remaining charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification Nos. 1, 2, 6, 7 and 8. Respondent is found Not Guilty of Specification Nos. 3 and 5. The Department's motion to dismiss Specification No. 4 is granted.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Captain Ahmad Alli, Lieutenant Timothy Murphy, Captain Wilfredo Camargo, and Police Officer Donna Kearney as witnesses.

Captain Ahmad Alli

Alli, a 16-year member of the Department, is currently assigned as Commanding Officer of Transit Kings Task Force. He was assigned as Executive Officer of Transit District 12 (TD 12) between July 2009 and May 2010. Respondent held the rank of sergeant during that period.

He described March 5, 2010, as a busy day at TD 12 with four prisoners in custody inside the command. He was in his office when he heard laughing and voices talking loudly at the front desk. He did not leave his office to see what the noise was all about, but when he went out to sign out at the end of his tour, he saw two Explorers dressed in civilian attire sitting behind the desk in close proximity to the cell doors and he observed Police Officers Negron and Tejada talking to the Explorers. The officers appeared to him to be just hanging out, not performing any police functions. Respondent, who was assigned as the Desk Officer that day, was facing them. Alli explained that the Explorers Program is "like a club for teenage kids to come and experience what the Police Department is like." The Explorers "were to the right of the desk. One was inside the desk area, and one was immediately outside the desk area right in front of the cell doors" where prisoners are lodged.

Alli was annoyed because the Explorers were in plainclothes and when he first spotted them, he did not know who they were. He was also concerned because they were near the cell door, which exposed them to possible danger. He called the Commanding Officer, Captain Peter Moreno (now retired), and informed him that Explorers were behind the desk. Moreno told Alli that Explorers were not authorized to be present in the command that day and that he had specifically told Police Officer Donna Kearney (the

Explorers' supervisor) and the other supervisors in the command that he did not want the Explorers there, especially because one of the Explorers was a female and he did not want any inappropriate allegations of fraternization. Kearney was not present in the command at the time. Alli told Respondent that the Explorers were not supposed to be there and Respondent replied that he would get them out of there.

Before going end of tour, Alli looked at the prisoner roster. His review, which took place at 1940 hours, showed that Respondent had not inspected the roster since 1525 hours. Respondent updated the roster only after Alli instructed him to do so.

[Department's Exhibit (DX) 1 is a copy of the Prisoner Holding Pen Roster for that day.]

On cross-examination, Alli was asked about an incident where Respondent's request for cash overtime resulted in an investigation. Although a memorandum had been distributed which stated that no cash overtime would be given for administrative functions, Respondent had requested cash overtime for performing an administrative function, the preparation of paperwork for an injured officer. Respondent was ultimately allowed to receive his overtime compensation in cash anyway because the investigation revealed that he had volunteered to do the paperwork which should have been prepared by a sergeant on the previous platoon. The sergeant on the previous platoon received instructions, but was not subjected to any discipline. Respondent received two hours of overtime to prepare the paperwork, which consisted of a memorandum comprised of two short paragraphs. Alli confirmed that it was his belief that Respondent could have completed this paperwork during his regular tour hours and that the two hours of overtime was unnecessary. Respondent notified the Internal Affairs Bureau (IAB) about the overtime incident. According to Alli, this neither annoyed nor angered him. While

Alli denied that he had lowered an evaluation of Respondent because of it, he confirmed that he did in fact reduce an evaluation in which Lieutenant Zion gave Respondent a rating of 3.0. He explained that he reduced the rating because it took Respondent 11 hours to prepare a memorandum that was two paragraphs long, and in his opinion this constituted "below standards" work.

Regarding March 5, 2010, Alli testified that he did not initially recognize the individuals behind the desk as Explorers because they were not in uniform. According to Alli, they were not supposed to be in the command in civilian clothes and when their supervisor was not at work. He did not recall Respondent telling him that the Explorers were waiting for a supervisor, nor was he aware of a directive by Moreno that the Explorers should be around the desk area and learn how to answer phones at the telephone switchboard. While Alli does not consider Explorers to be members of the service, he agreed that the purpose of the Explorers Program is for students to get exposure to the Department. The desk area at TD 12 is a large area with different levels separated by stairs and partitions. According to Alli, had the Explorers been in uniform that day, they would have been allowed in the desk area so long as they received permission from the Commanding Officer and Desk Officer. If the Explorers were waiting for a supervisor, they could have waited in seats in front of the desk or in the Muster Room.

Alli did not note on the prisoner roster at the time of his inspection that Respondent had neglected to update the sheet. The Integrity Control Officer (ICO), Lieutenant Timothy Murphy, made a notation of this fact at a later date. Alli confirmed that while the Patrol Guide states that the Desk Officer should supervise entries made on

the prisoner roster, it does not delineate a specific time reference. The requirement that the roster must be updated every half hour is delineated by a caption on the roster itself that states, "Guarding officer enter time every 30 minutes" (DX 1). According to the instructions on the roster, supervisors need to inspect the holding pens and document these inspections on a periodic basis. According to the roster for the day in question, Respondent conducted an inspection at 1525 hours (DX 1). According to Alli, Respondent was required to personally ensure that a guarding officer entered the time every 30 minutes.

Lieutenant Timothy Murphy

Murphy, an 18-year member of the Department currently assigned to IAB, used to be the ICO at TD 12. As ICO, he conducted an official Department interview of Moreno about the March 8, 2010 incident involving Respondent. Moreno stated in the interview that as he was coming down the stairs to inspect the subway station at 138 Street and Grand Concourse, he observed Police Officer Nunez talking on a cell phone. When Nunez saw Moreno, he abruptly hung up the phone and continued into the station. When Moreno went downstairs to inspect the Omega Booth, he learned that it was Nunez who was assigned to the Omega Booth that day. There was no entry in the Omega Booth log that Nunez had taken a personal. Moreno then went to speak with Respondent about Nunez using his cell phone and being off post. Respondent, who was conducting bag checks in front of the token booth at the time, told Moreno that Nunez needed to make a personal phone call and that he (Respondent) was okay with it. According to Murphy, Respondent should have taken corrective action by instructing Nunez not to make

personal calls. [DX 2 is the transcript of Murphy's interview with Moreno, conducted on June 24, 2010. Moreno has retired from the Department and declined to appear at this trial.]

Murphy was assigned as Platoon Commander on August 18, 2010. He was behind the desk when Respondent entered the command at approximately 1850 hours. Murphy approached Respondent and instructed him to take meal at 1900 hours and then relieve Sergeant James Irwin as Desk Officer at 2000 hours. In response to these instructions, Respondent requested lost time. Respondent did not provide an explanation for his request, and Murphy denied it. Murphy explained to Respondent that Irwin needed to be relieved at the desk because he (Irwin) was about to leave on vacation and needed to complete a communication before the end of tour. Shortly thereafter, Murphy saw Respondent around the desk. Respondent informed Murphy that he and Irwin had switched meal times.

At approximately 1930 hours, Captain Wilfredo Camargo entered the command, and Murphy informed him that Respondent had requested and been denied lost time. Murphy warned Camargo that Respondent would probably ask him (Camargo) for lost time as well. Murphy went to the desk and told Respondent that since he and Irwin switched meal times, he would be expected to remain at the desk except for the 2000 hours to 2100 hours meal hour. Respondent replied that this would not be a problem. Shortly thereafter, Respondent came to Murphy's office and knocked on the door. Murphy could see from a camera in the hallway that Respondent appeared tense and agitated. Murphy believed that there was going to be a confrontation and he did not want to deal with it at that point, so he did not answer his door for Respondent. Respondent

subsequently requested over the command intercom that Murphy call the desk. When Murphy called, Respondent told him that he was not feeling well, wanted to take lost time, and did not want to go sick on his last tour before a three-day weekend. This was the first time that Respondent mentioned feeling ill. When Murphy again denied the request for lost time, Respondent replied, "Fine, then I'm going sick." Respondent then abruptly hung up the phone, not giving Murphy a chance to respond.

Based on Respondent's agitated demeanor, Murphy believed that the situation was going to erupt into a confrontation. For this reason, he went to Camargo's office and told the captain about what had transpired. At one point, Respondent entered the office. Respondent looked angry. Before he could say anything, Murphy told him, "You have to go regular sick." While pointing at Murphy with his arm extended, Respondent replied by shouting, "This is personal because of this guy." Respondent had a grimace on his face. Respondent's statement caused Murphy to feel surprised, threatened, and disrespected. Respondent left the office and ultimately reported regular sick.

Murphy and Camargo agreed that Respondent should be issued a Command Discipline (CD) for discourtesy. On August 24, 2010, Murphy spoke with Respondent about the CD. Murphy asked Camargo to sit in on the meeting because he believed that there was going to be another confrontation. When Camargo informed Respondent about the CD, Respondent said something to the effect of, "What if I were to ask [Murphy] to step outside in the parking lot and settle this." Respondent seemed tense and agitated while he made this statement, and Murphy took the statement to mean that Respondent wanted to fight him. Murphy again felt threatened and disrespected. Camargo told

Respondent to leave the office. Respondent never approached Murphy to discuss the incident.

Respondent once approached Murphy about an overtime slip that he had submitted. At Alli's instruction, Murphy asked Respondent to take the overtime compensation in time instead of cash. Murphy was unaware that he was being recorded at the time. Nor was he aware that Respondent recorded a meeting concerning the appeal of an evaluation. Murphy, Alli, and Moreno were all present at the meeting, and Respondent did not ask permission to record their conversation.

On cross-examination, Respondent confirmed that he had no direct knowledge of the misconduct Moreno allegedly observed on March 8, 2010. All of the information he received about the incident came from Moreno. Before Moreno retired, he was transferred out of the command and served with Department charges. Murphy heard that Moreno forfeited 40 penalty days as a result of the charges. Murphy testified that a supervisor at a bag inspection checkpoint may leave the inspection area if there is a reason, such as a police emergency. He agreed that a member of the service (MOS) talking on his personal cell phone is not a police emergency. He did not know if Moreno noted misconduct in Respondent's Activity Log on that day. Murphy testified that if he had been the one who saw Nunez talking on the cell phone, he would have given instruction to Respondent and perhaps put Respondent in the Minor Violations Log. Murphy put Respondent in the Minor Violations Log more than 20 times. He did not know whether or not he put Respondent in the log more than he put any of his other subordinates.

Murphy testified that his decision whether or not to approve a subordinate's request for lost time is based on the needs of the Department. While there were no police emergencies on the night of August 18, 2010, he denied Respondent's request for lost time because Irwin needed to complete a report. Murphy could not recall the specifics of the report. According to Murphy, he would have approved Respondent's request for lost time had the report not been due and additional supervisors been available. He did not know if Respondent discussed taking lost time with Irwin. Murphy was never disrespectful to Respondent, nor did he ever make fun of Respondent's accent. He did not recall ever telling Respondent, "I can't even understand you."

Murphy was scared when Respondent pointed at him. Respondent was visibly upset at the time, and Murphy did not know what he was capable of doing. Murphy was not certain if the incident over the cash overtime occurred before or after the August 18 confrontation. During his tenure as ICO at TD 12, Murphy put Respondent in the Minor Violations Log for failing to visit integrity monitoring locations. Murphy had informal meetings with Respondent about this matter, but he did not document the meetings anywhere. There was once a Department investigation into Murphy's vehicle having an expired inspection.

On redirect examination, Murphy explained that the purpose of the Minor Violations Log was to record minor misconduct that did not rise to the level of a CD. He did not have a habit of placing members in the log when it was not appropriate. He usually notified members when he placed them in the log, and a log entry could be removed if it turned out that a name had been entered in error. While it was possible that he entered Respondent in the log more than 20 times, these occasions occurred over the

course of two to two-and-a-half years. Murphy placed Respondent in the log only when it was appropriate to do so. Respondent was not the only person to be placed in the log for failing to visit integrity monitoring locations.

Murphy confirmed that there were staffing issues in the command on August 18, 2010. He did not deny Respondent's request for lost time just because he felt like it. As for Respondent's request for cash overtime, Murphy explained that it was not an issue of not wanting to give Respondent cash. It was a matter of ironing out the details of a new overtime policy.

On recross examination, Murphy testified that after the exchange in Camargo's office on August 18, he did not talk to Respondent and try to work things out because Respondent was visibly agitated and he believed that further conversation would have just made the situation worse.

Captain Wilfredo Camargo

Camargo, a 27-year member of the Department, is currently assigned as Executive Officer (XO) of TD 12. When he entered the command on August 18, 2010, Murphy informed him that Respondent might be asking for lost time. Murphy also informed him that Respondent had already been denied lost time because there were various things that needed to get done. Ten minutes later, Respondent came to Camargo's office and requested lost time. Camargo told Respondent that it was improper for him to make this request after his immediate supervisor had already denied it. He advised Respondent to go back to Murphy to see if they could work something out.

Camargo subsequently heard Respondent request over the intercom that Murphy respond to the desk. Shortly thereafter, Murphy came to his office. Murphy appeared to be flustered and informed Camargo that Respondent had again requested and been denied lost time. At that point, a seemingly angry Respondent entered the office, approached Murphy in a threatening manner, pointed his finger at Murphy's face, and stated, "This is personal." Respondent then stormed out of the office before Camargo could say anything. Respondent appeared to be angry. Camargo and Murphy were surprised by Respondent's behavior. Camargo explained that he had never before experienced behavior like that by Respondent or any other supervisor. It was later decided that Respondent would be issued a CD for his conduct.

On August 24, 2010, after Respondent returned from sick leave, Camargo summoned Respondent to his office to discuss the issuance of the CD. Based on Respondent's behavior the previous week, Camargo believed that both he and Murphy should be present at the meeting. When Camargo told Respondent that he was getting a CD, Respondent leaned forward in his seat and stated to Camargo in a low voice, "What if I just took him out into the parking lot and settled this with him." As Respondent said the word "him," he pointed his chin at Murphy. Respondent's facial expression was serious, and Camargo took the statement as a threat of violence. Camargo was so shocked that he turned red and his throat almost closed up. When he regained his voice he told Respondent, "Sergeant this is totally inappropriate, this meeting is over, you're dismissed." Respondent left the office without saying anything further. According to Camargo, there was no chance that he misinterpreted Respondent's conduct. It was

Camargo's inclination to suspend Respondent that day, and he consulted with a superior officer about the matter. Respondent was not suspended.

Prior to the August 18 incident, Camargo had been assigned to TD 12 for a week and a half to two weeks. He had not had any prior interaction with Respondent, nor had he placed Respondent in the Minor Violations Log or issued him a CD.

On cross-examination, Camargo confirmed that he did not know at the time of the incident that Murphy had put Respondent in the Minor Violations Log more than 20 times. He did not know that Respondent had a "bad history" with several supervisors in the command or that people made disparaging remarks about Respondent's accent. Camargo accused Respondent of "boss shopping." He explained that the term is slang for when an MOS does not get the answer he wants from one supervisor and then turns around and asks another supervisor for the same thing. It is not a term that appears in any official Department manual. Camargo did not mean to suggest that an MOS who has an issue with a supervisor and needs to voice his concern about it should not go to another rank to discuss the issue. Camargo did not recall Murphy telling him that Irwin was fine with Respondent taking lost time, that Irwin claimed he would be able to cover the desk and get the paperwork done even if Respondent left early. Camargo did not think Respondent was being humorous when he suggested taking Murphy out to the parking lot.

Camargo later learned that Moreno faced disciplinary action for the misclassification of complaint reports. Moreno pled guilty to Department charges before retiring.

On redirect examination, Camargo testified that Respondent did not provide a reason for the lost time request. As platoon commander, Murphy was in the better position to know the staffing needs of the command.

Police Officer Donna Kearney

Kearney, a 23-year member of the Department currently assigned to TD 12, is the coordinator of the command's Explorers Program. She explained that the purpose of the Explorers Program is to teach people between the ages of 12 and 20 what it is like to be a police officer. Explorers were not trained to work at the desk area when Kearney first took charge of the program in June 2008. At Moreno's direction, Explorers started receiving desk training approximately a year later. This training consisted of lessons on how to answer telephone calls, make copies on the fax machine, and log in radios. Kearney usually gave Explorers at least two or three training sessions at the desk and also assigned them to the desk when she was scheduled to work on Saturdays. Explorers, who were required to dress in uniform while at work, would not have been scheduled to work at the desk when Kearney was not there. According to Kearney, Explorers understood that they needed to be in uniform and that she needed to be present whenever they were behind the desk.

On March 5, 2010, Kearney was on patrol in a subway station when she had a telephone conversation with Alli about the Explorers in the command. Kearney informed Alli that no Explorers were scheduled to work that day. The next day, she spoke with the two Explorers who had been behind the desk. Kearney subsequently had conversations with Respondent about the incident. She was not aware that on one occasion Respondent

recorded their conversation. As a result of the incident, Explorers are no longer trained regarding desk duties.

On cross-examination, Kearney testified that there were a few times that she yelled at Explorers for being behind the desk when they were not supposed to be there. She did not know of any other MOS who received discipline for allowing an Explorer behind the desk. The Explorers did not have their own office within the command. Although they should not have congregated around the desk, there were occasions that it happened.

On redirect examination, Kearney reiterated that Moreno authorized that Explorers receive training for desk duty. Although Moreno did not specify when Explorers would be allowed behind the desk, the training by Kearney included instruction that they only go behind the desk when they were scheduled to be there, while in uniform, and when she (Kearney) was present.

On recross examination, she testified that nothing was ever put in writing regarding the specifics of when Explorers could be at the desk.

Respondent's Case

Respondent called retired Lieutenant Joseph Gomez as his witness, and he testified in his own behalf.

Lieutenant Joseph Gomez (retired)

Gomez retired from the Department in July 2011. He worked in TD 12 for the last eight months of his career with the Department. He testified that Explorers walked

freely around the command and used to congregate around the desk area. He most likely saw Explorers behind the desk when not in uniform in March 2010, but he probably would not have recognized them as Explorers because he did not have direct contact with them. There was not any written directive with respect to rules for the Explorers. Gomez never disciplined anybody for having Explorers behind the desk, nor did he know of any other supervisor disciplining a subordinate for that reason. Moreno wanted Explorers to receive desk training.

Gomez was working at the desk on August 24, 2010 while Respondent and Murphy were meeting in Camargo's office. The office was approximately ten feet from the desk, the door was open, and Gomez could hear what was going on inside the office. The meeting inside the office lasted approximately ten minutes. At no point during that period did Gomez hear any yelling or any statement that sounded threatening. After the meeting, Camargo told Gomez that he should be careful with Respondent because he was a "hothead" and liked to fight. Camargo also told Gomez that they needed to start disciplining Respondent. When Gomez told Camargo that he did not have a problem with Respondent, Camargo replied that "if he had a problem with [Respondent], that means [Gomez] ha[d] a problem with him." Murphy never told Gomez that Respondent made a threatening statement. At no point during his time assigned to the command did Gomez observe Respondent act hot tempered or become involved in a confrontation with another MOS.

Gomez observed other supervisors "nitpicking on silly little things" when it came to Respondent. He explained that the supervisors gave Respondent a hard time and tried to give him CDs for rules that were not normally enforced. He stated, "That was just the

way that command operated. Like if they had a problem with one person, they'll just jump on top of it."

On cross-examination, Gomez testified that he never received Department charges. He never received a CD while assigned to TD 12. He did not sit in on any Explorers training and, thus, did not know what the Explorers were taught. There were people other than Respondent who received CDs at TD 12.

Respondent

Respondent, a 12-year member of the Department, is currently assigned to Transit District 3. He previously worked at TD 12 for approximately two years. In early March 2010, he worked two hours of overtime. Alli refused to compensate Respondent for the overtime in cash, insisting that he take it in time. Alli did not give him an explanation for this decision. When Respondent discussed the matter with Murphy, Murphy reiterated that he would have to take the overtime in time. A couple of days later, Respondent filed a complaint with IAB. He subsequently received cash for the overtime, but his relationship with Alli and Murphy changed after he filed the IAB log. The supervisors started to target him, treating him unfairly. He explained that he began to get CDs for minor things that other supervisors would have ignored.

Respondent did not accept the CDs that were issued to him for alleged misconduct on March 5 and March 8, 2010. About inspecting the prisoner roster, he pointed out that the roster itself states that supervisors are required to inspect periodically but does not give a specific timeframe.

About the desk at TD 12, Respondent made a distinction between the actual desk area and a second area that was also behind the desk. These first and second areas were divided by steps. On March 5, the Explorers were in the second area, which was an area used by Explorers on several occasions to congregate or wait for a supervisor. The telephone switchboard was located in the area. Respondent observed Explorers behind the desk on seven to ten occasions. Moreno wanted the Explorers to learn how to answer the phones, and no supervisor ever told Respondent not to let Explorers back there. Respondent was not aware of anyone else receiving discipline for allowing Explorers back there.

Respondent did not work the fifth platoon on March 5. The fifth platoon started at 1200 hours. Because Respondent did not start work that day until 1450 hours, the officers assigned to the fifth platoon received their assignments from another supervisor. During the course of the day, two of these officers returned to the command to process arrests.

On March 8, 2010, Respondent was assigned with two police officers to check bags near the token booth at the 138 Street subway station. There was an Omega Booth at the end of the southbound train platform. According to Respondent, whoever was assigned to the Omega Booth did not have to be there at all times but only had to be there every so often. The Omega Booth was not visible from the token booth area. During the course of his tour that day, Respondent did not observe any of his subordinates speaking on their personal cell phones. If he had seen such a thing, he would have taken corrective action. He explained that if he were to have caught an officer talking on the phone for the first time, he would have likely admonished the officer and instructed him to stop

using the phone unnecessarily. When Moreno signed Respondent's Activity Log that day, he noted that there were no violations observed. Similarly, Moreno did not say anything to Respondent at the time about seeing an officer on the phone. The first time that Respondent heard about an officer on the phone was when he was told that he was being served with a CD which he did not accept because he thought it was unfair. He explained that he did not think he should sign a CD for something that he did not do or something that did not happen. [Respondent's Exhibit (RX) A is copy of Respondent's Activity Log for March 8, 2010.]

Respondent was feeling a little sick on August 18, 2010. After Murphy told him to take meal and then work at the desk, Respondent asked if he could instead take the desk and then take lost time because he was not feeling well. Because Murphy denied the request, Respondent followed procedure by "moving through the ranks" and going to Camargo with his lost time request. Camargo advised Respondent to go back to Murphy. When Murphy denied the request a second time, Respondent told him that in that case he would have to report sick. Irwin had previously told Respondent that it would not be a problem if he left early. Respondent ended up going on sick leave.

Camargo called Respondent into his office at the beginning of his tour on August 24, 2010. Camargo told Respondent that he was going to be issued a CD for "boss shopping." Respondent had never heard that term before, and he asked Camargo for an explanation. He believed that he had done nothing wrong by "following the chain of command by going to the next higher supervisor." At one point during the meeting, he asked Camargo in reference to Murphy, "What if I asked him to the parking lot?" According to Respondent, he made this remark as a joke to indicate how ridiculous he

thought the issuance of a CD was. When he made the statement, he did not raise his hands or voice, nor did he act physically threatening in any manner. Murphy did not react in any way. Camargo did not take any disciplinary action toward Respondent at the time as a result of the remark. The meeting ended without incident. Respondent was neither modified nor suspended from duty that day. The duty inspector was notified but never came to speak with Respondent about the remark.

Respondent wore a recording device to record conversations that he had with Alli, Moreno, Kearney, and Murphy. At the time of the conversations, none of these individuals were aware that they were being taped. Respondent explained that he did this because he was being "attacked by [his] superiors." He continued, "I tried getting help from the other supervisor. . . the lieutenant was attacking so much I tried to go to the [Commanding Officer], it wouldn't work. I felt that I had no other way out but to record the conversation just to help myself in a case like this." He is not aware of any provisions within the Patrol Guide that state that it is misconduct to record conversations with other people.

On cross-examination, Respondent confirmed that one of the duties of a Desk Officer is to supervise the entries that are made on the prisoner roster. He confirmed that on March 5, 2010, the prisoner attendant neglected to make an entry on the roster for a period of at least an hour. Respondent did not look at the roster between 1525 hours and the time that Alli came to the desk and brought the missing inspection to his attention. The Explorers who were behind the desk that day were not in uniform.

Respondent conceded that he did not know if the IAB log he initiated was the reason he got paid cash overtime. Respondent also filed a complaint with the Office of

Equal Employment Opportunity (OEEEO) in March 2010. His OEEEO case was closed out as no case for employment discrimination.

Respondent reiterated that he was joking when he made his remark about going out to the parking lot. He did not gesture to Murphy when he made this comment. He did not think it was an inappropriate comment to make because he did not mean anything by it. He described himself as a professional who would not actually go out to the parking lot with Murphy. In November 2010, during an official Department interview, Respondent explained his conduct as, "I was just being a wise ass. I made a comment. I didn't mean anything with it. I'm not crazy enough to invite a supervisor to fight." Neither Murphy nor Camargo gave Respondent an opportunity to explain himself at the time. He did not attempt to explain himself to them at a later date. Respondent's tour was changed at some point after the August 24, 2010 meeting.

Before going sick on August 18, 2010, Respondent went to Camargo's office, where he told Camargo and Murphy that he was ill and wanted to go sick. At no point during the interaction did he state, "This is personal."

Respondent was not the only MOS to be placed in the Minor Violations Log. While Murphy placed other members in the log for similar violations, these other members were not placed in the log as often as Respondent. Respondent reviewed the log a few times during 2010. Respondent stated about the log, "I found my name on it even when I was already RDO. And the lieutenant kept putting my name in there."

On redirect examination, Respondent testified that since the prisoner roster was kept in the cell area which is outside of the desk area, he would not have known if a guarding officer had conducted an inspection until he went to the cell area to conduct his

own periodic inspection. He asserted that a Desk Officer who checked the roster just twice during a tour would be in compliance with the Patrol Guide requirement to conduct periodic inspections. Respondent confirmed that the purpose of having Explorers behind the desk was to train them in the event of an emergency. The OEEO complaint that he filed was against Camargo. The complaint was based on Camargo and Murphy making fun of his accent. On recross-examination, Respondent confirmed that there were supervisors other than Murphy who had entered him in the Minor Violations Log.

FINDINGS AND ANALYSIS

Specification Nos. 1, 2 and 3

These three charges all relate to Respondent's performance of his duties as the desk officer on March 5, 2010.

As to the charge that Respondent neglected to inspect the prisoner roster to ensure that entries were being made by guarding officers every 30 minutes, Respondent is found Guilty because the prisoner roster (DX 1) mandates that the Desk Officer is supposed to inspect the prisoner roster periodically and the prisoner roster supports Alli's testimony that when he inspected the prisoner roster (DX 1) at 1940 hours, Respondent had not inspected the prisoner roster since 1525 hours, a period of over four hours.

As to the charge that Respondent allowed two Explorers who were dressed in civilian attire behind the desk area when they were not authorized to be behind the desk area, I credit Alli's testimony that Explorers are only permitted to be inside the desk area when they are on duty and in uniform and that he observed two Explorers in civilian clothing, one inside the desk area and one just outside the desk area.

As a result, Respondent is found Guilty of Specification Nos. 1 and 2.

With regard to Specification No. 3, the only evidence offered by the Department to prove that Respondent failed to supervise subordinate members of the command by failing to ensure that MOS under his supervision were promptly going to post or assignment, was Alli's testimony that when he came to the desk area to sign out at the end of his tour, he observed two officers talking to the Explorers and that these officers appeared to be just hanging out and not performing any police functions. Respondent testified that the reason these two officers were at the desk was because they were processing arrests. Alli did not claim that he had asked Respondent what the two officers were doing at the desk, or that he had asked the two officers what they were doing at the desk, or that he had demanded to see their arrest paperwork. Thus, Respondent's testimony that the officers were performing the police function of processing arrests at the desk was not refuted by the Department.

Respondent is found Not Guilty of Specification No. 3.

Specification No. 4

The Department moved to Dismiss Specification No. 4. The Assistant Department Advocate (the Advocate) stated that the misconduct charged in this Specification is redundant to the misconduct charged in Specification No. 5 which more accurately reflects the specific misconduct alleged.

Specification No. 4 is, therefore, dismissed.

Specification No. 5

The only evidence offered by the Department to prove that on March 8, 2010 while assigned as Patrol Supervisor, Respondent “observed” Officer Nunez off of his post talking on a cellular phone and failed to take corrective action, was the statement made by Captain Moreno (DX 2) which was offered as hearsay at this trial. Although Moreno stated at his interview that he had personally observed Officer Nunez off his post talking on a cellular phone, Moreno did not claim that Respondent was with him at the time or that Respondent could not have missed seeing that Nunez was off his post talking on a cell phone.

Respondent testified that he had not observed Nunez off his post talking on a cell phone, that Moreno never said anything to him at that time about having seen an officer off post talking on a cell phone, and that when Moreno signed his Activity Log that day, Moreno noted that he had not observed any violations (RX A).

Since Moreno did not testify at this trial, Respondent’s attorney did not have the opportunity to question him as to why he did not immediately tell Respondent that he had just seen an officer off post talking on a cell phone and why Moreno had not entered this violation in Respondent’s Activity Log when Moreno signed his Activity Log that day.

Since the Department did not present sufficient evidence to meet its burden of proving that Respondent personally “observed” Nunez off his post talking on a cell phone, Respondent is found Not Guilty of Specification No. 5.

Specification No. 6

It is charged that while he was on-duty on August 18, 2010, Respondent was discourteous to Lieutenant Murphy in that after he was directed by Murphy to take meal at 1900 hours and then relieve the Desk Officer for meal at 2000 hours, Respondent twice requested to take lost time and when his requests were denied, he entered the office of Captain Camargo and confronted Murphy in what was perceived by Murphy to be a menacing and threatening manner.

I find Respondent Guilty because I credit the testimony of Murphy, which was directly corroborated by Camargo who was new to TD 12, that after Respondent's requests to take lost time were denied, Respondent pointed his index finger at Murphy and angrily told him, "This is personal."

Respondent is found Guilty of Specification No. 6.

Specification No. 7

It is charged that while he was on duty on August 24, 2010, during a meeting with Murphy and Camargo at which the events of August 18, 2010 were to be discussed, Respondent became agitated toward Murphy and Respondent asked Camargo, in a serious and threatening manner, if he could ask Murphy to step out into the parking lot to settle the matter.

Respondent acknowledged that during the meeting he asked Camargo, "What if I asked him [meaning Murphy] to the parking lot?" However, Respondent contended that he had not posed this question in a serious manner but, rather, he had asked it "jokingly." The record does not support Respondent's contention that he was trying to be humorous.

Both Camargo and Murphy considered his remark unfunny and the reason for the August 24, 2010 meeting was to inform Respondent that he would be receiving a CD for his discourteous conduct toward Murphy at the August 18, 2010 meeting, which was no laughing matter. Moreover, Respondent admitted that he never told Camargo or Murphy during the August 24, 2010 meeting or afterwards that he had only been joking. He testified that he assumed they knew he was joking because he is “a professional.” Respondent admitted at his official Department interview that he “was just being a wise ass.”

Respondent is found Guilty of Specification No. 7.

Specification No. 8

Respondent stipulated that he surreptitiously recorded six conversations he had with MOS and that five of these conversations were with supervisors: one with Moreno, one with Alli, and three with Murphy. Secretly recording conversations with fellow MOS without their knowledge that their voices are being recorded constitutes engaging in conduct prejudicial to the good order, efficiency or discipline of the Department. (See Disciplinary Case No. 2010-305 discussed below).

Respondent is found Guilty of Specification No. 8.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

Respondent was appointed to the Department on March 1, 2000. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

With regard to Specification Nos. 1 and 2, the misconduct Respondent has been found guilty of constitutes relatively minor misconduct. He neglected to inspect the prisoner roster for a four hour period and his action of allowing two Explorers in the desk area was only improper because the Explorers were off duty and not in uniform. Moreover, Respondent's misconduct regarding the Explorers is partially mitigated by the fact that when Alli told Respondent to get the Explorers out of the desk area, Respondent immediately, and without question, complied with Alli's order.

However, the misconduct Respondent has been found guilty of under Specification Nos. 6 and 7 constitutes serious misconduct because Respondent's action of pointing his index finger at Lieutenant Murphy on August 18, 2010, and telling him "this is personal," was not merely discourteous but also physically threatening, and because Respondent's action, only one week later, of challenging Murphy, a supervisor, to go outside to the parking lot and engage in fisticuffs was highly insubordinate. Respondent's claims that he felt ill on August 18, 2010, and that he felt that Murphy's denials of his requests to take lost time showed that Murphy was picking on him, does not in any way mitigate his discourteous conduct on these two occasions because Respondent had legal remedies available to him if he believed that Murphy was improperly denying his requests to take lost time and picking on him.

With regard to the misconduct Respondent has been found guilty of under Specification No. 8 of surreptitiously recording his conversations with fellow MOS,

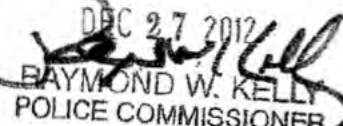
including three with Murphy, in Disciplinary Case No. 2010-305, signed on January 17, 2012, a ten-year police officer with no prior disciplinary record forfeited 20 vacation days for secretly recording her conversations with fellow MOS.

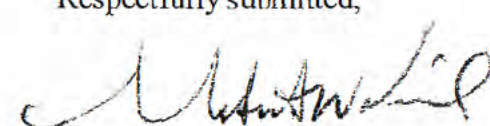
The Advocate recommended that the penalty to be imposed on Respondent consist of the forfeiture of 35 vacation days and one-year dismissal probation. I believe that the imposition of a one-year period on dismissal probation, in addition to the loss of 35 vacation days, is justified here based on the serious misconduct Respondent has been found Guilty of under Specification Nos. 6 and 7 and based on Respondent's prior disciplinary record (see attached Confidential Memorandum).

I find that when Respondent's instant misconduct of being discourteous and insubordinate toward a supervisor by physically and verbally threatening him on two occasions is viewed in light of Respondent's prior disciplinary record it reflects a disturbing pattern which indicates that Respondent has difficulty controlling his temper and his behavior when he becomes aggravated.

Therefore, it is recommended that Respondent be DISMISSED from the New York City Police Department, but that the penalty of dismissal be held in abeyance for a period of one year pursuant to section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. It is further recommended that Respondent forfeit 35 vacation days.

Respectfully submitted,

APPROVED
DEC 27 2012

RAYMOND W. KELLY
POLICE COMMISSIONER


Robert W. Vinal
Assistant Deputy Commissioner - Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
SERGEANT ELOY SANCHEZ
TAX REGISTRY NO. 926065
DISCIPLINARY CASE NOS. 2010-2572

Respondent received an overall rating of 4.5 on his 2011 performance evaluation, 3.5 on his 2010 evaluation, and 3.5 on his 2009 evaluation. He has been awarded three Excellent Police Duty medals. [REDACTED]

He has a prior formal disciplinary record. In 2004, he forfeited 16 vacation days after he pleaded guilty to two sets of disciplinary charges. In the first case, he pleaded guilty to having wrongfully used excessive force against a civilian while on duty. In the second case, he pleaded guilty to having engaged in off duty misconduct by slapping a summons book out of the hand of a Traffic Enforcement Agent who was issuing a summons, by failing to identify himself as a police officer to a 911 operator, and by failing to be in possession of his Department shield while he was in possession of his firearm.

On March 13, 2006, he was placed in Level 1 Force Monitoring. On December 14, 2006, he was placed in Level 2 Force Monitoring. On March 1, 2010, he was placed in Level 2 Discipline Monitoring. On September 20, 2010, he was placed in Level 3 Special Monitoring.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner Trials